

The Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1997

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State of Goa - Act

The Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1997

GOA

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The Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1997

Rule THE-GOA-PANCHAYATS-ACCOUNTS-AUDIT-AND-CUSTODY-OF-FUNDS-RULES-1997 of 1997

Published on 14 July 1997

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The Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1997

Published vide Notification No. 17/28/DP/ACT-AUDIT/95, dated 14-7-1997

17.

/28/DP/ACT-AUDIT/95. - Whereas the draft of the Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1995, was published as required by sub-section (1) of section 240 of the Goa Panchayat Raj Act, 1994 (Goa Act 14 of 1994), at pages 235 to 238 of the Official Gazette, Series I No. 23, dated 7-9-1995 under Notification No. 17/28/DP/ACT-Audit/95, dated 11-8-95 of the Department of Community Development and Panchayats, inviting objections and suggestions from all persons likely to be affected thereby before the expiry of thirty days from the date of publication of the said Notification in the Official Gazette;

And Whereas the said Gazette was made available to the public on 7th September, 1995;

And Whereas, vide subsequent Corrigendum/Notification No. 17/28/DP/ACT-AUDIT/95, dated 4th October, 1996, of the Department of Panchayat Raj and Community Development, published at pages 387 to 392 of the Official Gazette, Series I No. 32, dated 7-11-1996, the forms prescribed under the said Rules, 1995 and which were not published alongwith the Rules, 1995, for objections/suggestions, were published inviting objections/suggestions thereto from all persons likely to be affected thereby before the expiry of fifteen days from the date of publication of the said Corrigendum/Notification in the Official Gazette;

And Whereas, the said Gazette was made available, to the public on 7th November, 1996;

And Whereas, no objections/suggestions have been received from the public on the said draft Rules and Forms by the Government.

Now, Therefore, in exercise of the powers conferred by sections 184 and 187 read with sub-section (1) of section 240 of the Goa Panchayat Raj Act, 1994 (Act 14 of 1994), and in supersession of the Goa, Daman and Diu Village Panchayat (Accounts and Audit and Custody of Funds) Rules, 1963, the Government of Goa hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Goa Panchayats (Accounts, Audit and Custody of Funds) Rules, 1997.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Act" means the Goa Panchayat Raj Act, 1994 (Act 14 of 1994);

(b)

"Auditor" means the Director of Accounts and/or his deputies or any other person appointed by the Director of Accounts to perform the duties of an auditor;

(c)

"B. D.O." means the Block Development Officer of the concerned Block;

(d)

"Bank" means the State Co-operative Bank or any other Scheduled Bank;

(e)

"Director" means the Director of Panchayats;

(f)

"Director of Accounts" means Director of Accounts of the Government of Goa;

(g)

"Form" means the Form appended to these rules;

(h)

"Panchayat Fund" means the fund referred to in section 161 of the Act;

(i)

"Year" means the financial year commencing from 1st of April, and in the first year of functioning, the date from which Panchayat starts functioning, and ending on 31st of March.

Chapter - I General Principles and Rules

3.

(1)

A Panchayat Fund shall be jointly administered by the Secretary and the Sarpanch of the Panchayat and shall be held in the Bank.

(2)

Such sums as may be specified by the Director shall also be held in the Panchayat Office.

4.

(1)

The Secretary and the Sarpanch of the Panchayat shall jointly operate the Accounts of the Panchayat Fund;

(2)

The Secretary and the Sarpanch shall be responsible for the safe custody of the moneys kept in the Panchayat Office.

(3)

The Secretary shall furnish a security in such form and for such amount as may be specified by the Director.

(4)

The Director may also demand a security from such persons as are actually incharge of cash transaction of a Panchayat, if he deems necessary, in such form and for such amount as may be specified by him.

5.

The Secretary shall not, without the previous sanction of the Government, make any addition to, alteration in or modification of, any register or form specified in these rules or introduce any new form.

6.

The Secretary may, for administrative convenience, maintain such Registers as may be auxiliary to the account books specified in these rules, but such Register will not be recognised as account books specified in these rules.

7.

The accounts shall be maintained separately for each year.

8.

The accounts shall be kept in the language in which the Panchayat decides to keep its proceedings under rule 34 of the Goa Panchayat (Meetings) Rules, 1996.

9.

All books of accounts and registers shall be strongly bound. No accounts shall be prepared in loose sheets or loosely bound vouchers.

10.

Cash Book and Receipt Books shall be serially machine numbered and each page shall be stamped with the Panchayat seal, certified by B. D. O. or the officer authorised by the Director. The pages of all other accounts books shall also be serially numbered. No page shall be torn or removed from any account book. Pages may, when necessary, however be cancelled by drawing a line through them and writing "Cancelled". Such cancellation should be attested by the Secretary and the Sarpanch.

11.

No erasures or overwritings shall be made in any account books. Corrections shall be made, if required, in red ink by drawing a line through the wrong entry and writing the correct figure in a nearby space. All such corrections shall be properly attested by the Secretary and the Sarpanch.

12.

All money transactions to which any member, Secretary, or an employee of a Panchayat is a party in his official capacity, shall forthwith and without any reservation be brought to account in the appropriate register and all money received by such member, Secretary or employee, as the case may be, shall form part of the Panchayat Fund. Any person paying money for being credited to the Panchayat Fund shall present it to the Secretary or the person authorised to collect such sum.

13.

As soon as any sum is received by a person authorised to receive, a receipt in Form No. 4 duly signed and dated shall be issued out of a Printed Book containing the receipt form in duplicate by using double aided carbon. The original receipt shall be made over to the person concerned and the carbon duplicate shall be retained for record.

14.

Any person having a claim against Panchayat shall present a voucher duly receipted and stamped with a receipt stamp for such value as specified under the Indian Stamp Act, 1899 and the rules made thereunder.

15.

The bills shall be prepared and signed in ink. No payment shall be made on a voucher or order signed by a person other than the Secretary. No money shall be paid on a voucher or orders signed with a rubber or facsimile stamp. When the acquittance on a voucher is given by a mark or seal or thumb impression, it shall be attested by some known person. After payment, every voucher shall be kept on record in such manner as may be specified by the Director of Accounts.

16.

Every voucher shall bear or have attached to it an acknowledgement of the payment, signed by the person for whom or in whose behalf the claim is put forth. No payment shall be made in the absence of the necessary acknowledgement. If a voucher is lost, a certificate of payment prepared in manuscript and signed by the Secretary and endorsed, if necessary, by his superior officer, shall be placed on record. Full particulars of the claim shall invariably be set forth.

17.

Date of payment shall, whenever possible be noted by the payees in their acknowledgement. If, for any reason, such as illiteracy, on the presentation of a receipt in anticipation of payment, it is not possible to note the date of payment by the payee, the date of payment shall be noted by the Secretary under his initials.

18.

In the cases of payment made by remittance through post office, the postal money order receipt shall be kept with the voucher. In the case of payment for articles received by value payable post, the value payable cover together with the invoice or bill showing the details of the item paid for shall be kept with the voucher.

19.

No duplicate or copy of a receipt granted for money received or of a bill or other document for payment of money which has already been paid, shall be issued on the ground that the original has been lost. If any necessity arises for such a document, a certificate may be given that on a specified day, a certain sum on a certain account was received from or paid to a certain person.

Chapter - II Forms of Accounts and how to be maintained

20.

The accounts of a Panchayat Fund shall be maintained in the forms appended to these Rules in accordance with the instructions given in the said forms and the provisions of the following instructions.

(i)

General Ledger:- A record of the current account of the Fund under para 1 shall be maintained in a General Ledger-Abstract Register in Form No. 1, under the different minor detailed heads. This Ledger shall be maintained in two volumes - one for receipts and the other for expenditure and one page allotted to each minor, detailed head;

(ii)

Control Ledger:- In addition to the General Ledger, a Control Ledger shall also be maintained in Form No. 2 to record totals of transactions under all minor detailed heads, within a budget group in a month as recorded in the General Ledger;

(iii)

Cash Book:- All the transactions of one day shall be entered in a cash book in Form No. 3 on that day and each entry in the cash book shall be attested in the appropriate place by the Secretary of the Panchayat. At the end of the day, the closing cash balance should be separately exhibited as cash on hand and cash in Bank. On the last working day of the month a certificate shall be recorded in the cash book to the effect that cash on hand has been physically verified and closing balance agrees both with cash in hand and cash in bank as verified from the Pass Book Certificate;

(iv)

Receipt and Register of Receipts:- All payments must be fully supported by payee's bills and receipts. Save as otherwise provided, all receipts of money shall be acknowledged by a receipt in Form No. 4. A register of Receipt Book shall be maintained in Form No. 5 and shall be kept with the stock of new and returned Receipt Books under lock and key on the responsibility of the Secretary;

(v)

Registers of properties and Assets:- All property vested in the Panchayat shall be entered in a Register of properties and Assets in Form No. 6. In addition to all items of furnitures and other equipment, this register shall contain a list of buildings, land and the like which is vested in the Panchayat. Whenever any property is acquired or disposed of it shall be entered in the Register of properties and Assets;

(vi)

Assessment and Demand and Collection Register:- A list of all persons liable to pay any rate, tax, cess or fee and the amount to be paid by them in respect of each such rate, tax, fee shall be maintained separately for assessment in Form No. 7 and demand and collection in Form No. 8. The Secretary of the Panchayat shall be responsible for causing preparation of such Assessment and Demand and Collection Registers and maintaining the same in the office of the

Panchayat;

(vii)

Register of Conditional Grants sanctioned during the year:- A Register shall be maintained in Form No. 9 for record of conditional grants given for special and specific purpose under section 160 of the Act or under any special orders and expenditure therefrom.

21.

Monthly and Annual Accounts.

(a)

Every Panchayat shall, at the end of each month as well as at the end of the year, prepare an Account in Form No.10 showing the receipts and payments classified under the several Heads of Account contained in the Budget Estimates.

(b)

The totals of the details under each head of receipt and payment as given in account shall agree with the figure under the same heads in the General Ledger.

(c)

The details of the balance in the office and in the Bank shall be separately shown in the account and a certificate that the closing balance as shown in the accounts has been compared with that shown in the cash book and the Bank Pass Book, Certificate, and found to be correct shall be appended to the account. A memo explaining the differences, if any, shall also be attached to the certificate. Certificate showing the 'Monthly Closing Balance' in the Account shall be obtained and kept on record.

(d)

The accounts shall be checked by the auditors with reference to the Account Books.

22.

Pass Book.

(a)

The Pass Book of the Bank shall be under the lock and key of the Secretary.

(b)

He shall examine the Pass Book/Certificates from time to time and shall immediately call the attention of the Bank to any discrepancy that may appear.

Chapter - III Audit

23.

(i)

The accounts of a Panchayat shall be audited once a year by the Director of Accounts.

(ii)

Detailed checks to be exercised during audit shall be specified by him.

(iii)

Test audit may be made by the Audit Officer of the Government of Goa as and when considered necessary by him.

(iv)

The auditing officer in his report shall certify as to whether the accounts of a Panchayat are maintained in the manner specified and grants made are spent as authorised.

24.

The Audit Officer shall, within one month after the completion of audit, submit a copy of the audit report to the Panchayats and to the Chief Executive Officer.

Chapter - IV Budget Estimates

25.

(i)

The Budget estimate of a Panchayat shall be prepared by the Secretary in Form No. II appended to these rules not later than 15th February and forwarded to the concerned Block Development Officer not later than the 1st of March.

(ii)

Suitable minor and detailed heads may be added to the Budget heads as specified in Form No. 11 as may be necessary with the approval of the concerned Block Development Officer in consultation with the Director of Accounts.

(iii)

A copy of the revised and Supplementary Budget Estimates shall be forwarded to the Director within 15 days of its approval by the Panchayat.

(iv)

All budget estimates, original, revised and supplementary shall be passed before the Financial year to commence on the first day of April next following and the budget as passed by the Panchayat shall be forwarded to the Zilla Panchayat, if any, before such date as fixed by the Government.

Chapter - V Miscellaneous

26.

Preservation of Accounts Records.

- All the account records shall be preserved for such time as may be specified by the Director of Accounts from time to time and no account record shall be destroyed without his written permission.

Form No. 1

[See rule 20 (i)]

General Ledger-Abstract Register

Receipt

@ Item

Expenditure

Date

Short Particulars

Amount

C. B. Folio

Progressive

Total

1

2

3

4

5

6

@ According to the classification of Minor item under Budget Heads.

Form No. 2

[See rule 20 (ii)]

Control Ledger-Abstract Register

Receipt

Group of Item

Expenditure

Month

Short Particulars

Amount

Progressive

Total

1

2

3

4

5

Form No. 3

[See rule 20 (iii)]

Cash-Book

For the year 1919

Receipt

Expenditure

Date

Particulars [full details with reference (to)

etc.] to any receipt

Amount

Total

Classification

Ledger

Date

Particulars (full details of claims Scheme)

Amount

Total

Classification

Ledger Folio

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Form No. 4

[See rule 13 and rule 20 (iv)]

Receipt

Receipt Book No.

Receipt No.

The Received with thanks from..... Rupees () on
account of

Date

Book Reference to cash entry.

Page No.

Signature and Designation of

Issuing Officer

Instructions covering the use of Form No. 4:-

(a)

Each Receipt Book shall have a Serial number, and each receipt which shall be in duplicate for use with carbon paper, shall have a serial number within the book. Both, Book number and receipt number shall be machine numbered on each receipt, whether original or duplicate.

(b)

The Seal of the Panchayat shall be affixed to each Receipt before it is issued. The carbon copy shall be retained and the original issued.

Form No. 5

[See rule 20 (iv)]

Register of Receipt Book

Sr. No. of entry

Date

Sr. No. of each receipt book received into stock

(give one line for each book)

Sr. No. of receipt in the book

Signature of person to whom issued with date of issue

Date of return of receipt book and other remarks

Balance quantity of receipt book in stock

New

Used

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Form No. 6

[See rule 20 (v)]

Register of Properties and Assets

Sr. No. of entry

Date of Acquisition

Particulars of property

Price paid

Where placed or situated

How disposed of

Remarks (give all relevant office references)

Certificate of verification

Date

Amount realized, if sold

Signature of Attesting Officer

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Form No. 7

[See rule 20 (vi)]

Assessment Register

Sr. No.

Name of the Tax Payer

House No. of the Tax Payer

Name of Tax

Name of Tax

Additional column according to the No. of taxes

Total

Remarks

Amount Assessed

Amount Assessed

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Form No. 8

[See rule 20 (vi)]

Demand and Collection Register

Name of tax payee Ward No.

Details of tax

Yearswise Demand and the amount collection

Reference Sr. No. in the Register of Assessment

Arrears of Tax (P/F from previous year)

Years demand

Total Tax payable columns [(2)+(3)]

Amount paid Receipt and date

Arrears of tax (B/F from previous year)

Years demand

Total Tax payable column (6)+(7)

Amount paid receipt and date

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Yearswise Demand and the amount collection

Arrears of taxes (B/F from previous year)

Years demand

Total tax payable columns (10)+(11)

Amount paid receipt & date

Arrears of tax (B/F from previous year)

Years demand

Total Taxes payable columns (14)+(15)

Amount paid receipt No. and date

Remarks

(10)

(11)

(12)

(13)

(14)

(15)

(16)

(17)

(18)

Form No. 9

[See rule 20 (vii)]

Register of conditional grants sanctioned during the year

Sr. No.

No. and date of the sanction

By whom sanctioned

Purpose for which given

Period within which to be spent

Amount of the grant

No. and date of Treasury voucher on which the amount is drawn

Amount sent by Panchayat

No. and date of voucher

Amount drawn

Balance after each transaction

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

Form No. 10

[See rule 21 (a)]

Annual

Account of Income and Expenditure of Panchayat for the year

Monthly

Particulars of Income

Amount Particulars of Expenditure

Amount

Income

Expenditure

{|

Closing of the last| monthyear

|

Closing of the current| monthyear

|

|-

| Budget Heads

| Budget Heads

|

l}

Form No. 11

[See rule 25 (i)]

Expenditure

Receipts

Sanction estimate of the previous year

Actuals of the previous year

Sanctioned estimate of the current year

Actuals of current year

Budget estimate of ensuing year

(1)

(2)

(3)

(4)

(5)

(6)

1.

Opening Balance.

2.

Grants from Government

(1) Special.

(2) General.

3.

Other Grants

(1) Local Authorities.

(2) Private.

4.

Proceeds of taxes, fees etc. under section 153 of the Act.

5.

Proceeds of other loans, etc.

6.

Sale proceeds.

7.

Extraordinary receipts.

Current year

Ensuing year

Sanctioned estimate of the previous year

Actual of the previous year

Sanctioned estimate of the current year

Estimate actuals of current year

Budget estimate of ensuing year

(7)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

(15)

1.

Administration

2.

Sanitation and Public Health and Family Welfare.

3.

Public Works.

4.

Planning and Development.

5.

Social Welfare.

6.

Education and Culture.

7.

Rural Housing.

8.

Drinking Water.

9.

Poverty Alleviation Programme.

10.

Libraries.

11.

Rural Sanitation.

12.

Construction and maintenance of slaughter houses and cattle pounds.

13.

Miscellaneous.

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Translation